

Contract & Building/Pest Inspection Red Flags — Tasmania

What to check before you sign — because in Tasmania, there's no cooling off to fall back on.

Correct as at July 2026. General information only, not legal advice — always have a conveyancer or solicitor review your specific contract before signing.

Section 1 — The Single Most Important Thing to Understand About TAS Contracts

- ☐ [] **There is no cooling-off period in Tasmania**, similar to Western Australia. Once both parties sign the contract of sale, you are bound — there is no statutory right to withdraw.
- ☐ [] **Every condition you need must be written into the contract before you sign** — finance approval, building/pest inspection, or anything else. There's no fallback protection once you've signed.

Section 2 — Building & Pest Inspection: Even More Critical Here

- ☐ [] **Arrange your building and pest inspection before you sign**, or ensure the contract includes a clearly worded, time-limited inspection condition.
- ☐ [] **Use a licensed, independent inspector.**
- ☐ [] **Get both a building and pest inspection**, ideally combined.
- ☐ [] **Ask specifically about:** structural issues, rising damp (a genuine concern in Tasmania's cooler, wetter climate), roof condition, asbestos (common in pre-1990s homes), and general electrical/plumbing age.
- ☐ [] **Get the report in writing before you sign**, not after.

Section 3 — Contract Fundamentals

- ☐ [] **Check the finance clause wording carefully** — if you're not fully pre-approved, ensure a genuine, clearly time-limited finance condition is included.
- ☐ [] **Confirm the settlement date** works with your finance, insurance, and moving logistics.
- ☐ [] **Confirm deposit terms** — amount, due date, and where it's held.
- ☐ [] **Confirm all expected inclusions are explicitly listed** in the contract.
- ☐ [] **If buying a strata property, review the strata records** — recent meeting minutes, financials, sinking fund balance, and any known disputes or special levies.

Section 4 — Before You Sign: Final Checks

- ☐ [] **Have a conveyancer or solicitor review the entire contract before you sign it** — not after. This is your primary protection given the absence of a cooling-off period.
- ☐ [] **Confirm current stamp duty and grant settings apply to your specific purchase before you finalise your budget** — given the significant policy transition around 30 June 2026 (see Checklist #1 in this series), don't assume figures you've seen elsewhere still apply.
- ☐ [] **Don't let time pressure push you into signing before your review and inspection are genuinely complete.**

Quick Reference — Key TAS Contract Realities

PROTECTION	WHAT IT MEANS
Cooling-off period	None — you're bound the moment both parties sign
Finance/inspection conditions	Must be explicitly written into the contract before signing
Building/pest inspection	Not automatically provided — arrange your own before signing
Contract review	Must happen before signature, not after

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